

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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OUSMAN SAVANE,

Plaintiff,

against –

Index No.:

VERIFIED COMPLAINT

CITY OF NEW YORK, DET. NELA GOMEZ
(Tax ID No. 938586), SGT. ANGEL LEON
(Tax ID No. 917866), SGT. GREGORY ACCOMANDO
(Tax ID No. 923481), SGT. TYNETTA JACKSON
(Tax ID No. 920423), SGT. LUKE SULLIVAN,
DISTRICT ATTORNEY OF NEW YORK COUNTY,
CYRUS R. VANCE, JR. and ASSISTANT DISTRICT
ATTORNEY NAHAL BATMANGHELIKJ,
Defendants.

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Plaintiff, OUSMAN SAVANE (hereinafter "SAVANE"), by his attorneys, RUBERT &
GROSS, P.C., alleges the following:

1. At all times hereinafter mentioned, Plaintiff, SAVANE, was and still is a resident of the State of New York, County of New York.
2. Defendant, CITY OF NEW YORK (hereinafter "CITY") was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant, CITY, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.
4. At all times alleged in the Complaint, Defendant, DET. NELA GOMEZ (hereinafter "GOMEZ"), was an employee of defendant, CITY.
5. At all times hereinafter mentioned, defendant, GOMEZ, was acting within the scope of her employment.
6. Defendant, GOMEZ, is being sued individually and in her official capacity.

7. At all times hereinafter mentioned, defendant, GOMEZ, was acting under color of law.
8. At all times relevant to the Complaint, SGT. ANGEL LEON (hereinafter "LEON"), was an employee of defendant, CITY.
9. At all times hereinafter mentioned, defendant, LEON, was acting within the scope of his employment.
10. Defendant, LEON, is being sued individually and in his official capacity.
11. At all times hereinafter mentioned, defendant, LEON, was acting under color of law.
12. At all times relevant to the Complaint, SGT. GREGORY ACCOMANDO (hereinafter "ACCOMANDO") was an employee of defendant, CITY.
13. At all times hereinafter mentioned, defendant, ACCOMANDO, was acting within the scope of his employment.
14. Defendant, ACCOMANDO, is being sued individually and in his official capacity.
15. At all times hereinafter mentioned, defendant, ACCOMANDO, was acting under color of law.
16. At all times relevant to the Complaint, SGT. TYNETTA JACKSON (hereinafter "JACKSON") was an employee of defendant, CITY.
17. At all times hereinafter mentioned, defendant, JACKSON, was acting within the scope of her employment.
18. Defendant, JACKSON, is being sued individually and in her official capacity.
19. At all times hereinafter mentioned, defendant, JACKSON, was acting under color of law.
20. At all times relevant to the Complaint, SGT. LUKE SULLIVAN (hereinafter "SULLIVAN") was and still is an employee of defendant, CITY.

21. At all times hereinafter mentioned, defendant, SULLIVAN, was acting within the scope of his employment.
22. Defendant, SULLIVAN, is being sued individually and in his official capacity.
23. At all times hereinafter mentioned, defendant, SULLIVAN, was acting under color of law.
24. At all times relevant to this action, defendant, CYRUS R. VANCE (hereinafter "VANCE"), was the District Attorney for New York County.
25. At all times hereinafter mentioned, defendant, VANCE, was acting in his investigative capacity as a prosecutor.
26. At all times hereinafter mentioned, defendant, VANCE, was acting in his capacity as supervisor of the employees of the District Attorneys' office including but not limited to defendant, ADA NAHAL BATMANGHELIKJ.
27. At all times hereinafter mentioned defendant, VANCE, is sued individually and in his official capacity.
28. At all times relevant to this action, defendant, ADA NAHAL BATMANGHELIKJ (hereinafter referred to as "BATMANGHELIKJ"), was an Assistant District Attorney employed by the New York County District Attorney's Office to perform duties in the City of New York, County of New York.
29. At all relevant times, defendant, BATMANGHELIKJ, was acting as the agent, servant, and employee of defendant, CITY.
30. At all times herein mentioned, defendant, BATMANGHELIKJ, was acting under color of state law.

31. At all times hereinafter mentioned, defendant, BATMANGHELIKJ, was acting in his investigative capacity as a prosecutor.
32. Defendant, BATMANGHELIKJ, is sued in his personal and official capacity.
33. On March 21, 2014, within ninety (90) days of accrual of all actions, plaintiff filed a Notice of Claim with the Comptroller of the City of New York in the manner and mode required by law.
34. More than 60 days have elapsed since the filing of plaintiff's Notices of Claim and adjustment or payment thereof has been neglected or refused.
35. This action is brought within one (1) year and ninety (90) days from the date of accrual of all causes of action.
36. Plaintiff has complied with all conditions precedent applicable to the instant action.
37. This action falls within one or more of the exceptions of CPLR §1602, including, but not limited to CPLR §1602 (11).

FIRST CAUSE OF ACTION
(State Law False Arrest against all Defendants)

38. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "37" above as if fully set forth herein.
39. On October 4, 2012, at approximately 6:30 a.m., at 211 West 146th Street, Apt. 4D, New York, New York, defendant, CITY, through its agents, servants and/or employees, including but not limited to defendants, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN, requested that plaintiff accompany them to the offices of the Manhattan Child Advocacy Center (hereinafter MCAC) located on 122nd Street and Park Avenue.
40. After being falsely accused of having sexually assaulted a minor, plaintiff was taken to the

25th Precinct located at 120 East 119th Street, New York,

41. Thereafter, plaintiff was taken to the 28th precinct located at 2271-89 Eighth Avenue, New York, New York. From the 28th Precinct, plaintiff was taken to Central Booking.
42. Plaintiff was wrongfully and falsely arrested, photographed and fingerprinted by police officers employed by the New York City Police Department, including, but not limited to GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN.
43. Plaintiff was falsely charged by defendant, CITY, including but not limited to Defendants GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN, acting in concert with Defendants VANCE and BATMANGHELIKJ, with sex crimes in violation of New York Penal Laws.
44. Thereafter, Plaintiff was confined to Riker's Island where he remained continuously in custody until January 13, 2014 when all charges against him were dismissed and he was released from custody.
45. At the time of the unlawful detention and imprisonment, plaintiff had not committed any illegal act.
46. At the time of the unlawful detention and imprisonment, plaintiff had not committed or attempted to commit any crime.
47. Defendants purposely ignored evidence that showed that plaintiff was innocent of the crimes of which he was accused.
48. At the time of plaintiff's unlawful arrest and imprisonment, defendants knew or should have known through the exercise of proper police procedure and reasonable investigation, that the aforementioned detention and imprisonment were false and without justification.
49. Defendants acted in bad faith and without justification in committing the aforesaid

detention and unlawful imprisonment of plaintiff.

50. The aforesaid arrest was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was, therefore, a false arrest.
51. As a result of the foregoing false arrest and imprisonment, plaintiff was caused to suffer personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
52. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SECOND CAUSE OF ACTION
(State Law Assault and Battery)

53. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "51" above as if fully set forth herein.
54. On October 4, 2012, plaintiff was assaulted and battered, photographed and fingerprinted by defendant, City, including but not limited to police officers, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN.
55. As a result of the foregoing assault and battery, plaintiff was caused to suffer personal injuries, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
56. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

THIRD CAUSE OF ACTION
(State Law Malicious Prosecution against all Defendants)

57. Plaintiff repeats and reiterates each and every allegation contained in paragraphs

numbered “1” through “56” above as if fully set forth herein.

58. Following plaintiff’s arrest on October 4, 2012, defendant, CITY, its agents, servants and/or employees intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.
59. Following plaintiff’s arrest on October 4, 2012, defendant, GOMEZ, its agents, servants and/or employees intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.
60. Following plaintiff’s arrest on October 4, 2012, defendant, LEON, its agents, servants and/or employees intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.
61. Following plaintiff’s arrest on October 4, 2012, defendant, ACCOMANDO, its agents, servants and/or employees intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.
62. Following plaintiff’s arrest on October 4, 2012, defendant, JACKSON, its agents, servants and/or employees intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.
63. Following plaintiff’s arrest on October 4, 2012, defendant, SULLIVAN, its agents, servants and/or employees intentionally, knowingly, recklessly, negligently and with

malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.

64. Following plaintiff's arrest on October 4, 2012, defendant, VANCE, its agents, servants and/or employees intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.
65. Following plaintiff's arrest on October 4, 2012, defendant, BATMANGHELIKJ, its agents, servants and/or employees intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against plaintiff without probable cause and in bad faith.
66. That subsequent to plaintiff's arrest, defendant, CITY, through its agents, servants and/or employees, did give false testimony and/or failed to give exculpatory evidence in connection with plaintiff's criminal prosecution.
67. That subsequent to plaintiff's arrest, defendants, GOMEZ, did give false testimony and/or failed to give exculpatory evidence in connection with plaintiff's criminal prosecution.
68. That subsequent to plaintiff's arrest, defendants, LEON, did give false testimony and/or failed to give exculpatory evidence in connection with plaintiff's criminal prosecution.
69. That subsequent to plaintiff's arrest, defendants, ACCOMANDO, did give false testimony and/or failed to give exculpatory evidence in connection with plaintiff's criminal prosecution.
70. That subsequent to plaintiff's arrest, defendants, JACKSON, did give false testimony

and/or failed to give exculpatory evidence in connection with plaintiff s criminal prosecution.

71. That subsequent to plaintiff s arrest, defendant, SULLIVAN, did give false testimony and/or failed to give exculpatory evidence in connection with plaintiff s criminal prosecution.
72. That in commencing and continuing said malicious prosecution, defendant, CITY, its agents, servants and/or employees, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
73. That in commencing and continuing said malicious prosecution, defendant, GOMEZ caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
74. That in commencing and continuing said malicious prosecution, defendant, LEON caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
75. That in commencing and continuing said malicious prosecution, defendant, ACCOMODADO, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
76. That in commencing and continuing said malicious prosecution, defendant, SULLIVAN, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
77. That in commencing and continuing said malicious prosecution, defendant, JACKSON, caused plaintiff to be falsely charged with acts in violation of the Penal

Law of the State of New York.

78. That in commencing and continuing said malicious prosecution, defendant, VANCE, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
79. That in commencing and continuing said malicious prosecution, defendant, BATMANGHELIKJ, caused plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.
80. Plaintiff had not committed or attempted to commit any illegal acts.
81. Plaintiff had not given defendants probable cause to believe that he had committed the illegal acts of which he was accused.
82. Plaintiff had not given defendants probable cause to believe that he had attempted to commit the illegal acts of which he was accused.
83. Defendants knew, or should have known through the exercise of proper police procedure and reasonable care that said investigation was false, flawed and incomplete.
84. Defendant, CITY, through its agents, servants and/or employees, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
85. Defendant, GOMEZ, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
86. Defendant, LEON, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.

87. Defendant, ACCOMANDO, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
88. Defendant, JACKSON, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
89. Defendant, SULLIVAN, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
90. Defendant, VANCE, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
91. Defendant, BATMANGHELIKJ, willfully and wrongfully accused plaintiff of having violated the Penal Law of the State of New York.
92. All criminal charges against plaintiff were dismissed on January 13, 2014.
93. As a result of the aforementioned malicious prosecution, plaintiff suffered and continues to suffer, substantial damages.
94. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
95. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION
(State Law Intentional Infliction of Emotional Distress)

96. Plaintiff repeats and reiterates each and every allegation contained in paragraphs

numbered “1” through “95” above as if fully set forth herein.

97. That defendant, GOMEZ’s conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.
98. That defendant, GOMEZ, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to her which made it substantially certain that he would cause such emotional distress to said plaintiff.
99. Defendant, GOMEZ, acted with utter disregard of the consequences of her actions.
100. That defendant, LEON’s conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.
101. That defendant, LEON, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that he would cause such emotional distress to said plaintiff.
102. Defendant, LEON, acted with utter disregard of the consequences of his actions.
103. That defendant, ACCOMANDO’s conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.
104. That defendant, ACCOMANDO, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that he would cause such emotional distress to said plaintiff.
105. Defendant, ACCOMANDO, acted with utter disregard of the consequences of his

actions.

106. That defendant, JACKSON's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.
107. That defendant, JACKSON, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to her which made it substantially certain that he would cause such emotional distress to said plaintiff.
108. Defendant, JACKSON, acted with utter disregard of the consequences of her actions.
109. That defendant, SULLIVAN's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.
110. That defendant, SULLIVAN, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that he would cause such emotional distress to said plaintiff.
111. Defendant, SULLIVAN, acted with utter disregard of the consequences of her actions.
112. Defendant, VANCE, acted with utter disregard of the consequences of his actions.
113. That defendant, VANCE's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.
114. Defendant, VANCE, acted with utter disregard of the consequences of her actions.

115. That defendant, BATMANGHELIKJ's conduct towards plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.
116. That defendant, BATMANGHELIKJ, acted with the desire and intent to cause plaintiff emotional distress or acted under circumstances known to him which made it substantially certain that he would cause such emotional distress to said plaintiff.
117. Defendant, BATMANGHELIKJ, acted with utter disregard of the consequences of his actions.
118. As a result of the foregoing, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
119. By reason of the foregoing, plaintiff demands judgment against defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION
(State Law Negligence)

120. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "119" above as if fully set forth herein.
121. Defendant, CITY, through its agents, servants and/or employees, including, but not limited to, defendants, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN, negligently performed its duties in that it failed to exercise such care in the performance of their police duties as reasonably prudent police officers would have under similar circumstances.

122. Defendant, GOMEZ, negligently performed her duties in that she failed to exercise such care in the performance of her police duties as reasonably prudent police officers would have under similar circumstances.
123. Defendant, LEON, negligently performed his duties in that he failed to exercise such care in the performance of his police duties as reasonably prudent police officers would have under similar circumstances.
124. Defendant, ACCOMANDO, negligently performed his duties in that he failed to exercise such care in the performance of his police duties as reasonably prudent police officers would have under similar circumstances.
125. Defendant, JACKSON, negligently performed her duties in that she failed to exercise such care in the performance of her police duties as reasonably prudent police officers would have under similar circumstances.
126. Defendant, SULLIVAN, negligently performed his duties in that he failed to exercise such care in the performance of his police duties as reasonably prudent police officers would have under similar circumstances.
127. As a result of defendants' negligence, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
128. By reason of the foregoing, plaintiff demands judgment against defendants, in a sum of money which exceeds the jurisdictional limits of all Courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

(Negligent Hiring, Training and Supervision against the City of New York)

129. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "128" above as if fully set forth herein.
130. That the actions of defendant, CITY, through its agents, servants and/or employees, including but not limited to defendants, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN, heretofore described, constitute negligence in that defendant, CITY, negligently trained or failed to train its agents, servants and/or employees, especially defendants, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN.
131. That the actions of defendant, CITY, through its agents, servants and/or employees, including but not limited to defendants, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN, heretofore described, constitute negligence in that defendant, CITY, negligently supervised or failed to supervise its agents, servants and/or employees, especially defendants, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN.
132. The actions of defendant, CITY, through its agents, servants and/or employees, including defendant, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN, heretofore described, constitute negligence in that defendant, CITY, negligently disciplined or failed to discipline its agents, servants and/or employees, especially defendants, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN.
133. Defendant, CITY, was negligent in its hiring of its agents, servants and/or employees, especially defendants, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN, who defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold his position.

134. Defendant, CITY, was negligent in its retention of its agents, servants and/or employees, especially defendant, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN, who defendant, CITY, knew, or in the course of adequate and proper investigation, should have reasonably known, was unfit to hold his position in that he refused or failed to perform within the statutory and constitutional limits of his authority and misused and abused his position.
135. As a result of the negligence of defendant, CITY, and the acts of defendant, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN, and other agents, servants and/or employees of defendant, CITY, plaintiff was caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
136. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION

(42 U.S.C. § 1983 based on False Arrest, Malicious Prosecution and Malicious Abuse of Process against all Defendants)

137. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "136" above as if fully set forth herein.
138. By their conduct and actions in falsely arresting and imprisoning plaintiff, assaulting and battering plaintiff, trespassing upon plaintiff, maliciously prosecuting plaintiff, abusing process against plaintiff, violating plaintiff's rights to equal protection, violating plaintiff's rights to substantive and procedural due process, invading

plaintiff's privacy, fabricating an account and/or evidence concerning the arrest of plaintiff, withholding exculpatory evidence, failing to properly investigate, failing to intercede on behalf of the plaintiff and in failing to protect the plaintiff from the unjustified and unconstitutional treatment he received at the hands defendants, GOMEZ, LEON, ACCOMANDO, JACKSON, SULLIVAN, VANCE and BATMANGHELIKJ, acting under color of law and without lawful justification, intentionally, maliciously, and with a deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983, the United States Constitution, including its Fourth, and Fourteenth amendments and the Constitution of the State of New York.

139. Plaintiff was falsely arrested by defendants, GOMEZ, LEON, ACCOMANDO, JACKSON and SULLIVAN, taken to the 25th and 28th precinct, and later Riker's Island, where he was detained against his will until January 13, 2014.
140. That defendant, GOMEZ, violated Plaintiff's civil rights by falsely arresting him in violation of 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
141. That defendant, LEON, violated Plaintiff's civil rights by falsely arresting him in violation of 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
142. That defendant, ACCOMANDO, violated Plaintiff's civil rights by falsely arresting him in violation of 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.

143. That defendant, JACKSON, violated Plaintiff's civil rights by falsely arresting him in violation of 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
144. That defendant, SULLIVAN, violated Plaintiff's civil rights by falsely arresting him in violation of 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
145. That defendant, GOMEZ, by malicious prosecuting, Plaintiff deprived him of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
146. That defendant, LEON, by malicious prosecuting Plaintiff, deprived him of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
147. That defendant, ACCOMANDO, by malicious prosecuting Plaintiff, deprived him of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
148. That defendant, JACKSON, by malicious prosecuting Plaintiff, deprived him of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
149. That defendant, SULLIVAN, by malicious prosecuting Plaintiff, deprived him of his

liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.

150. That defendant, VANCE, by malicious prosecuting Plaintiff, deprived him of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
151. That defendant, BATMANGHELIKJ, by malicious prosecuting, Plaintiff deprived him of his liberty in violation of Plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
152. Defendant, GOMEZ, violated plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
153. Defendant, LEON, violated plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
154. Defendant, ACCOMANDO, violated plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
155. Defendant, JACKSON, violated plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.

156. Defendant, SULLIVAN, violated plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
157. Defendant, VANCE, violated plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
158. Defendant, BATMANGHELIKJ, violated plaintiff's civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
159. Defendant, GOMEZ, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
160. Defendant, LEON, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
161. Defendant, ACCOMANDO, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
162. Defendant, JACKSON, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
163. Defendant, SULLIVAN, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution

and the Constitution of the State of New York.

164. Defendant, VANCE, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
165. Defendant, BATMANGHELIKJ, violated plaintiff's civil rights by falsely accusing him of having committed a crime in violation of the 42 U.S.C. §1983, the U.S. Constitution and the Constitution of the State of New York.
166. That the actions of defendants, GOMEZ, LEON, ACCOMANDO, JACKSON, SULLIVAN, VANCE and BATMANGHELIKJ heretofore described, constitute unlawful arrest, detention, imprisonment, assault and battery and malicious prosecution and were designed to and did cause specific and serious bodily harm, pain and suffering to plaintiff in violation of plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
167. Defendants, GOMEZ, LEON, ACCOMANDO, JACKSON, SULLIVAN, VANCE and BATMANGHELIKJ and deprived plaintiff of his liberty in violation of plaintiff's civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, Amendments Four and Fourteen, and the Constitution of the State of New York.
168. The actions taken by defendants, GOMEZ, LEON, ACCOMANDO, JACKSON, SULLIVAN, VANCE and BATMANGHELIKJ and were undertaken under color of law and would not have existed but for said defendants using their official power.
169. As a result of the above-mentioned constitutionally impermissible conduct, plaintiff was

caused to suffer personal injuries, violation of civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

170. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

EIGHTH CAUSE OF ACTION
(42 U.S.C. §1983 against defendants Vance and Batmanghelikj)

171. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "173" above as if fully set forth herein.
172. At all times hereinafter mentioned, defendant, VANCE, as New York County District Attorney, had supervisory duties over the Assistant District Attorneys employed in the Office of the New York County District Attorney, including, but not limited to, defendants, BATMANGHELIKJ.
173. At all times hereinafter mentioned defendant, BATMANGHELIKJ, was an Assistant District Attorney assigned to the Office of the New York County District Attorney.
174. That all times hereinafter mentioned, defendant, VANCE, as New York County District Attorney, acted as a policymaker for the City of New York.
175. Defendant, VANCE, as District Attorney for New York County, defendant, had managerial functions relating to supervision and training of police officers and Assistant District Attorneys with respect to their investigatory duties as well as their duty protect citizens' constitutional rights.
176. At all times relevant to the Complaint, defendant, BATMANGHELIKJ, as New York County Assistant District Attorney, acted as a policy maker for the City of New York.

177. At all times relevant to the Complaint, defendant, VANCE, evinced a pattern of ignoring law enforcement's as well as his Office's improprieties and misconduct.
178. At all times relevant to the Complaint, defendant, BATMANGHELIKJ, evinced a pattern of ignoring law enforcement's as well as his Office's improprieties and misconduct.
179. Defendant, VANCE, failed to train and supervise police officers and ADAs regarding their legal and constitutional obligations.
180. Such management failures correlate with defects in the District Attorney's role as a local policymaker for the City of New York.
181. Pursuant to policy and/or custom, defendant, VANCE, concealed exculpatory evidence and committed other constitutionally impermissible wrongs in order to secure convictions.
182. At all times hereinafter mentioned defendant, BATMANGHELIKJ, failed to train and supervise police officers and other ADAs as to their legal and constitutional obligations.
183. That such management failures correlate with defects in defendant, BATMANGHELIKJ's role as a local policymaker for the City of New York.
184. That pursuant to policy and/or custom, defendant, BATMANGHELIKJ, concealed exculpatory evidence and committed other constitutionally impermissible wrongs in order to secure convictions.
185. At all times hereinafter mentioned, defendant, VANCE, as District Attorney for New York County, was acting under color of law and authority in his official capacity as a policymaker for New York County and the City of New York, concerning the investigatory functions of the New York County District Attorney's

Office.

186. At all times hereinafter mentioned, defendant, VANCE, while performing his investigatory functions as the New York County District Attorney, violated plaintiff's constitutional right as guaranteed by the United States Constitution and the Constitution of the State of New York in violation of 42 U.S.C. § 1983.
187. At all times hereinafter mentioned, defendant, BATMANGHELIKJ, in performing his investigatory functions as a New York County Assistant District Attorney, violated plaintiff's constitutional right as guaranteed by the United States Constitution and the Constitution of the State of New York in violation of 42 U.S.C. § 1983.
188. As a result of the above-described policies, plaintiff was deprived of his liberty in violation of 42 U.S.C. § 1983.
189. That the above mentioned failures on the part of defendants VANCE, and BATMANGHELIKJ constitute a violation of plaintiff's civil rights as protected by 42 U.S.C. § 1983 and the Constitutions of the United State and the State of New York.
190. That as a result of the above-described failures on the part of defendants, VANCE and BATMANGHELIKJ, plaintiff was caused to suffer personal injuries, property damages, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
191. As a result of the above-described impermissible conduct of the defendants, VANCE and BATMANGHELIKJ, plaintiff demands judgment against said defendants in a sum of money, which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

NINTH CAUSE OF ACTION
(Conspiracy under 42 U.S.C. § 1983 against all Defendants)

192. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "191" above as if fully set forth herein.
193. That defendants, GOMEZ, LEON, ACCOMANDO, JACKSON, SULLIVAN, VANCE and BATMANGHELIKJ , acting under color of law, conspired with each other as well as with others to reach a mutual understanding and thereafter acted to undertake a course of conduct to injure, oppress, threaten and intimidate plaintiff in the free exercise and enjoyment of the rights and privileges and equal protection of the law secured to him by the Constitution of the United States, including the rights: to be free from false arrest and false imprisonment; to be free from malicious prosecution; to associate and speak freely; to have fair and equal access to and seek redress in the courts; and to have fair and equal access to exculpatory evidence so as to be able to properly present a defense in a criminal matter.
194. That defendants, GOMEZ, LEON, ACCOMANDO, JACKSON, SULLIVAN, VANCE and BATMANGHELIKJ, acting under color of law, were willful participants in a joint action the purpose of which was to further the purpose and goals of pressuring the true culprit of the crimes of which plaintiff was accused as well as other crimes to confess to those crimes at the expense of plaintiff who had not committed or attempted to commit any crime.
195. That as part of the conspiracy among defendants, and in furtherance of said conspiracy, defendants willfully, recklessly and negligently accused plaintiff of committing a criminal act without probable cause; falsely arrested and imprisoned plaintiff; maliciously prosecuted plaintiff; covered up wrong doing by defendants, their agents, servants and/or

employees, including but not limited to the deliberate, willful, malicious and/or negligent alteration, loss and/or destruction of exculpatory evidence, the failure to present exculpatory evidence, misrepresentation of evidence; suppression of exculpatory evidence; and by submitting false police reports, statements and/or testimony to support and corroborate the false charges against plaintiff.

196. As a result of the aforesaid conspiracy, plaintiff was caused to suffer personal injuries, violation of civil and constitutional rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to their reputation and standing within his community.
197. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

TENTH CAUSE OF ACTION
(42 U.S.C. § 1983 based on *Brady* Violations)

198. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “199” above as if fully set forth herein.
199. Defendant, GOMEZ, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff’s substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its progeny.
200. Defendant, LEON, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff’s substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its

progeny.

201. Defendant, ACCOMANDO, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff's substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its progeny.
202. Defendant, JACKSON, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff's substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its progeny.
203. Defendant, SULLIVAN, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff's substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its progeny.
204. Defendant, VANCE, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff's substantive and procedural due process rights and *Brady v. Maryland*, 373 U.S. 83 (1963) and its progeny.
205. Defendant, BATMANGHELIKJ, acting under color of law, suppressed and failed to disclose to either the prosecution or defense material evidence that was favorable to plaintiff, either because of its exculpatory or impeachment value, in violation of plaintiff's substantive and procedural due process rights and *Brady v. Maryland* 373 U.S. 83 (1963)

and its progeny.

206. Said suppression and failure to disclose was done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, and was done without lawful justification or reason, and was designed to and did cause specific and serious pain and suffering in violation of plaintiff's constitutional rights and guaranteed under 42 U.S.C. § 1983, and the Fourth and Fourteenth Amendments to the United States Constitution
207. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of liberty, a loss of enjoyment of life, and suffered economic loss and other damages.
208. Defendants are sued in their individual and official capacities.
209. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

ELEVENTH CAUSE OF ACTION

(Unreasonably Prolonged Detention under 42 U.S.C. § 1983 against all Defendants)

210. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "209" above as if fully set forth herein.
211. Defendants' above-described conduct, including but not limited to defendants' mishandling of exculpatory and/or impeaching evidence and their concealment, suppression, and/or failure to turn said evidence over to the prosecution or the defense, and their intimidation, threats, and coercion of witnesses, engaged in under color of state law, violated rights, privileges and immunities secured to plaintiff by the Constitution of the United States of America including, *inter alia*, plaintiff's Fourth and Fourteenth Amendment right to be free from continued detention after it was or should have been known that plaintiff was entitled

to release.

212. Plaintiff had a right to be free from continued detention stemming from defendants' intimidation and coercion of witnesses, and their mishandling, concealment, and/or suppression of the exculpatory and/or impeaching material described above, and defendants violated that right.
213. That said Constitutional right arises both from plaintiff's Fourth Amendment right to be free of unreasonable searches and seizures and plaintiff's Fourteenth Amendment right to substantive due process.
214. Defendants' conduct in this regard was so egregious and outrageous as to shock the conscience.
215. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses and suffered economic loss and other damages.
216. Defendants are sued in their individual and official capacities.
217. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

TWELFTH CAUSE OF ACTION

(42 U.S.C. § 1983 based on Failure to Intervene against all Defendants)

218. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "217" above as if fully set forth herein.
219. Defendants failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which plaintiff was subjected despite the fact that they had opportunities to do

so.

220. The individual defendants, and each of them, thereby displayed deliberate indifference to plaintiff's rights, including but not limited to plaintiff's right to be free from unreasonable and unlawful searches and seizures, right to procedural and substantive due process, and right to a fair trial.
221. That by virtue of the aforementioned acts by defendants, plaintiff was deprived of his civil rights guaranteed under the Constitution of the United States, including his right under the Fourth and Fourteenth Amendments to the United States Constitution, and defendants therefore are liable to plaintiff for damages under 42 USC § 1983.
222. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses and suffered economic loss and other damages.
223. Defendants are sued in their individual and official capacities.
224. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

THIRTEENTH CAUSE OF ACTION
**(42 U.S.C. § 1983 based on Denial of Procedural and Substantive
Due Process against all Defendants)**

225. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.
226. By their conduct and actions in falsely arresting and imprisoning plaintiff and maliciously prosecuting him, defendants violated plaintiff's rights to equal protection and both substantive and procedural due process of plaintiff as well as the protections afforded

under the Fourth and Fourteenth Amendments.

227. That the actions of defendants resulting from plaintiff's arrest, detention, imprisonment and malicious prosecution deprived the plaintiff of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§1983 and 1988.
228. That defendants violated plaintiff civil rights by fabricating an account and/or evidence concerning the arrest of plaintiff; withholding exculpatory evidence, failing to properly investigate the circumstances of the crime of which plaintiff was wrongfully accused and in knowingly accusing plaintiff of a crime that defendants knew he had not committed.
229. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, property damages, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
230. By reason of the foregoing, plaintiff demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FOURTEENTH CAUSE OF ACTION
(42 U.S.C. § 1983 Based on Unreasonable Continued Prosecution
Against all Defendants)

231. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully set forth at length herein.
232. That at all times hereafter mentioned, defendant, CITY OF NEW YORK, wrongfully and impermissibly continued to prosecute plaintiff knowing that he was not guilty of the crime of which he was accused.

233. That at all times hereafter mentioned, defendants, GOMEZ, LEON, ACCOMANDO, JACKSON, SULLIVAN, VANCE and BATMANGHELIKJ wrongfully and impermissibly continued to prosecute plaintiff knowing that he was not guilty of the crime of which he was accused.
234. That the purpose of defendants' continued prosecution of plaintiff, knowing that he was not guilty of the crime of which he was accused, was for the impermissible purpose of obtaining a conviction at all cost.
235. That as a result of the above-described conduct, plaintiff was deprived of his rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. § 1983 and 1988.
236. As a result of the above-described impermissible conduct of the defendants, plaintiff demands judgment against said defendants in a sum of money, which exceeds the jurisdictional limits of all the Courts of lesser jurisdiction.

FIFTHTEEN CAUSE OF ACTION
Against Defendant City
(42 U.S.C. § 1983 – “Monell” Claim)

237. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “236” above as if fully set forth herein.
238. All of the acts by the police defendants described above were carried out pursuant to policies and practices of the City of New York which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant CITY and its agency, the NYPD and the New York County District Attorney's Office.

239. At all times material to this complaint, defendant, CITY, had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
240. At all times material to this complaint, defendant, CITY, acting through the New York County District Attorney's Office, the Police Department and the individually named defendants herein had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
241. At all times hereinafter mentioned, defendant, CITY, had a policy and practice of ignoring citizens' rights as guaranteed by the United States Constitution and the Constitution of the State of New York.
242. Defendant, City, had a policy of ignoring law enforcement improprieties and misconduct, including the purposeful and wrongful accusation of citizens' committing crimes that it knew they had not committed. .
243. That the City's policymaker's failure to train its employees in the constitutional limits of their authority evinced a pattern of deliberate indifference to the constitutional rights of the citizens of the City of New York
244. Defendant CITY, its NYPD and the New York County District Attorney's Office, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the police defendants' wrongful acts; and/or failed to prevent or stop these acts; and/or allowed or encouraged these acts to continue.
245. That defendant, VANCE, as New York County District Attorney and his Assistant District Attorneys acted as a New York City policymaker with respect to the investigation, arrest and prosecution of the plaintiff.

246. That defendant, VANCE, evinced a pattern of ignoring law enforcement improprieties and misconduct.
247. That defendant, VANCE, failed to train and supervise Assistant District Attorneys regarding Brady and other legal obligations, including the right to a speedy trial.
248. That defendant, VANCE, as policymaker for the District Attorney's Office and for the City of New York evinced a pattern of deliberate indifference to the constitutional rights of the citizens of the City of New York.
249. At all times material to this complaint, defendant, CITY, acting through its Police Department and through the individual defendants, had *de facto* policies, practices, customs, and usages of failing to properly train, screen, supervise, or discipline employees and police officers, and of failing to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline said defendants.
250. At all times material to this complaint, defendant, CITY, acting through its police department and through the individual defendants, had *de facto* policies, practices, customs and/or usages of failing to assure that that citizens' constitutional rights were protected, including the right not to be wrongfully accused of committing crimes that the police and district attorney knew they had not committed.
251. All of the acts by the defendants described above, were carried out pursuant to policies and practices of the City of New York which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and under the supervisory authority of the CITY, its Police Department and the New York County District Attorney's Office.
252. The actions of the defendants herein resulted from and were taken pursuant to *de*

facto policies and/or well-settled and widespread customs and practices of the CITY, which are implemented by prosecutors, to prosecute and continue to prosecute persons through fabricated and manipulated allegations without adequate basis in fact and/or despite substantial exculpatory evidence known to them and withheld from accused persons.

253. At all times defendant, CITY, had a policy of prosecuting individuals in violation of their constitutional rights to be free from searches and seizures.
254. The existence of such unlawful *de facto* policies and/or well-settled and widespread customs and practices has been known to supervisory and policy- making officers and officials of the District Attorney's Office and the CITY, including, without limitation, defendant, VANCE and his predecessor in interest, for a substantial period of time.
255. Despite knowledge of such unlawful *de facto* policies and practices, these supervisory and policy-making officers and officials of the NYPD, the Bronx County District Attorneys' Office and the City and their predecessors in interest did not take steps to terminate these policies and practices, did not discipline individuals who engaged in such practices, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanctioned and ratified these policies, customs, and practices through their deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.
256. The existence of such unlawful *de facto* policies and/or well-settled and widespread customs and practices has been known to supervisory and policy-making officers and

officials of the NYPD and the CITY for a substantial period of time.

257. Despite knowledge of such unlawful *de facto* policies and practices, these supervisory and policy-making officers and officials of the NYPD, the New York County District Attorney's Office, the CITY and their predecessors in interest did not take steps to terminate these policies and practices, did not discipline individuals who engaged in such practices, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanctioned and ratified these policies, customs, and practices through their deliberate indifference to or reckless disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.
258. The CITY's policies and practices in existence at the time of the conduct complained of herein, which caused plaintiff's injuries herein included, *inter alia*:
- a. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to proper conduct and investigation at and in relation to a crime scene;
 - b. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to the preparation of truthful accusatory instruments;
 - c. The failure to properly supervise, train, instruct, and discipline police officers with regard to the preparation of truthful police paperwork, or to correctly and accurately document and preserve evidence or to memorialize investigative steps taken, or circumstances surrounding the obtaining of evidence, that could be

relevant to the investigation and/or prosecution, and/or discoverable in any litigation;

- d. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to the New York State Penal Law and the State and Federal Constitutions, and with regard to adequate evidence of crimes and to discipline those who unjustifiably charge and prosecute or continue to prosecute persons accused of crimes in the absence of probable cause;
- e. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to the exercise of their authority, including, without limitation, in regard to disclosure of exculpatory and/or impeaching evidence;
- f. The failure to disclose to the prosecution or the defense material evidence that is favorable to the accused person(s), either because of its exculpatory or impeachment value, in violation of an accused person's substantive and procedural due process rights and Brady v. Maryland, 373 U.S. 83 (1963) and its progeny;
- g. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to proper methods of conducting interviews of witnesses and/or accused persons, and to discipline police officers who use improper methods to coerce and/or elicit false and improper identification procedures;
- h. The failure to properly supervise, train, instruct, and discipline police officers, and assistant district attorneys including defendants herein, known to be irresponsible

in their dealings with citizens of the community, known to violate state and federal law and state and federal constitutional limitations in their investigative and law enforcement conduct, known to fabricate and falsify evidence, known to manipulate, intimidate, threaten, and coerce witnesses, known to deprive criminal defendants of their right to a fair trial, and known to arrest and initiate/continue prosecution in the absence of probable cause;

- i. Failing to establish or assure the functioning of a bona fide and meaningful departmental system for dealing with complaints of police misconduct, but instead responding to these types of complaints with bureaucratic power and official denials calculated to mislead the public;
- j. Failing to adequately investigate, monitor, audit, and respond to citizen complaints and other claims of police misconduct with the NYPD, such that defendant City and the NYPD knew about and acquiesced in a custom of tolerating constitutional, statutory, and common law violations;
- k. The failure to properly supervise, train, instruct, and discipline police officers and assistant district attorneys with regard to proper, and constitutional, methods of conducting identification procedures, and of adequately preserving and documenting all critical aspects of such procedures, including the circumstances surrounding the procedure and all statements made by or to the witness participating in the procedure;
- l. The tacit acceptance of and encouragement of a code of silence wherein police officers regularly cover up police misconduct by refusing to report other officers' misconduct or by telling false and/or incomplete stories, inter alia, in sworn

testimony, official reports, in statements to the Civilian Complaint Review Board (“CCRB”) and the Internal Affairs Bureau, and in public statements designed to cover for and/or falsely exonerate accused police officers;

m. Encouraging and/or failing to discipline officers for “testilying” and/or fabricating false evidence to bring about the police officers’ preconceived perceptions or determinations of guilt, including, but not limited to, such perceptions and/or determinations influenced by racial prejudice and/or ethnic bias.

259. That defendant CITY, failed to implement proper procedures for the identifications of alleged perpetrators of violation of civil rights and of failing to properly train, supervise or discipline police supervisors and subordinate officers to prevent them from failing to assure that proper procedures were implemented.

260. The aforementioned CITY policies, practices and customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the broad sweeping police misconduct detailed herein, where distinct sets of police officers endeavored to procure the prosecution and conviction of plaintiff on charges of which plaintiff was in fact innocent by, inter alia, creating and fabricating evidence to create the appearance of probable cause that plaintiff had committed the crime of which he was accused, intentionally and maliciously concealing material exculpatory evidence, suborning perjurious testimony, and unduly influencing the statements and testimony of witnesses and the identifications made by witnesses by means of threats, coercion, violence, and deceit.

261. That defendants CITY, the New York City Police Department and the New York County District Attorney's office tolerates and encourages police officers to lie to cover up

wrongful conduct as evidenced, inter alia, by: the Mollen Commission Report, July 7, 1994; the abolishment of the Special Prosecutor to investigate charges of police corruption; the fact that defendant CITY, the NYPD and the New York County District Attorney's office have been on notice that their training of police officers has been inadequate and that police officers joining the force, including, on information and belief, the individual defendant police officers herein, were disproportionately involved in misconduct and abuse.

262. The City policies, practices and customs in existence at the time of failing to supervise, train, instruct, and discipline police officers and encouraging their misconduct are further evidenced, inter alia, by the following:

- a. The Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department ("Mollen Commission Report"), dated July 7, 1994, states:

"In the face of this problem [of corruption], the [New York City Police] Department allowed its systems for fighting corruption virtually to collapse. It has become more concerned about the bad publicity that corruption disclosures generate than the devastating consequences of corruption itself. As a result, its corruption controls minimized, ignored and at times concealed corruption rather than root it out. Such an institutional reluctance to uncover corruption is not surprising. No institution wants its reputation tainted – especially a Department that needs the public's confidence and partnership to be effective. A weak and poorly resourced anti-corruption apparatus minimizes the likelihood of such taint, embarrassment and potential harm to careers. Thus there is a strong institutional incentive to allow corruption efforts to fray and lose priority – which is exactly what this Commission uncovered. This reluctance manifested itself in every component of the Department's corruption controls from command accountability and supervision, to investigations, police culture, training and recruitment.

“For at least the past decade, the system designed to protect the Department from corruption minimized the likelihood of uncovering it.”

Mollen Commission Report, at 2-3.

- b. Accordingly, in 1990, the Office of the Special Prosecutor, which investigated charges of police corruption, was abolished.
- c. The Mollen Commission concluded that police perjury and falsification of official records

“is probably the most common form of police corruption facing the criminal justice system

* * *

Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.

* * *

What breeds this intolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of police falsifications, there is a persistent belief among many officers that it is necessary and justified, even if unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, ‘doing God’s work’ – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, ‘What’s wrong with that? They’re guilty.’”

Mollen Commission Report at 36, 40-41.

- d. Since at least 1984, defendant, City, the NYPD and the Bronx County District Attorney’s Office have been on notice that their training of police officers has been inadequate and that police officers joining the force, including, on

information and belief, individual defendant police officers herein, were disproportionately involved in misconduct and abuse. See, e.g., Mayor's Advisory Committee on Police Management and Personnel Policy, Final Report, February 24, 1987.

- e. The City of New York Office of the Comptroller, in an unpublished report, found that the police often conduct inadequate investigations.
- f. Prior to July 1993, the CCRB, which is responsible for receiving and investigating complaints of police misconduct made by citizens against members of the NYPD, operated as an agency of the NYPD rather than as an independent, unbiased entity.
- g. During the 1980s and early 1990s, in and about the time frame of this case, the CCRB received numerous complaints of police misconduct, but failed to fully investigate many of them and substantiated the guilt of the accused police officer in a suspiciously minuscule number of cases.
- h. On average, in 1985-1988, the CCRB conducted complete investigations of only 27 percent of the complaints received, closed 45 percent of the total cases without completing full investigations, and substantiated (i.e., found the subject employee guilty of the alleged act of misconduct) only 1.9 percent of the total complaints received.
- i. In 1989, the CCRB conducted complete investigations of only 29 percent of the 3,515 complaints received, closed 41 percent of the total cases without completing full investigations, and substantiated only 2.6 percent of the total complaints received.

- j. On average, in 1990-1992, the CCRB conducted complete investigations of only 36 percent of the complaints received, closed 40 percent of the total cases without completing full investigations, and substantiated only 3.3 percent of the total complaints received.
- k. The CCRB has also failed to recommend disciplinary action in the vast majority of its cases.
- l. On average, in 1985-1988, the CCRB recommended disciplinary action in only 6.7 percent of its disposed of cases.
- m. In 1989, the CCRB recommended specific disciplinary action to the Police Commissioner in only 3.4 percent of its disposed of cases (i.e., 110 recommendations of discipline out of the 3262 disposed of complaints).
- n. On average, in 1990-1992, the CCRB recommended disciplinary action in only 7.5 percent of its disposed of cases.
- o. Moreover, most of the complaints that are substantiated by the CCRB do not result in any kind of meaningful discipline. For instance, as of November 14, 1991, of the 81 officers who faced departmental trials in 1991, 47 were cleared, and 34 were disciplined with penalties ranging from loss of vacation to a 90-day suspension.
- p. Damages have been awarded to victims of police misconduct in 300-400 cases annually since 1988, as a result of out-of-court settlements or judgments in civil actions. Meanwhile, on average, only about 107 complaints were substantiated annually by the CCRB in 1988-1992.

- q. The money paid out by the City in damages to alleged victims of police misconduct rose from approximately \$7 million in 1988, to \$13.5 million in 1992, to \$24 million in 1994.
- r. More than \$82 million was paid in damages to victims of police misconduct in 1352 cases between 1992 and 1995.
- s. In the vast majority of police misconduct cases that result in verdicts or substantial settlements for the victims, defendant City imposes no discipline, either before or after resolution in court, almost never reopens an investigation previously conducted after such resolution, and sometimes promotes the abusive officer to a position of greater authority despite the judicial resolution.
- t. In none of the approximately 8,000 complaints reviewed by the CCRB in 1987 and 1988 did any police officer provide evidence in support of a complainant.
- u. Former New York County District Attorney Robert Morgenthau has been quoted as acknowledging that in the NYPD there is a "code of silence," or a "code of protection" that exists among officers and that is followed carefully.
- v. In 1985, former Police Commissioner Benjamin Ward, testifying before a State Senate Committee, acknowledged the existence of the "code of silence" in the NYPD.
- w. Former New York City Police Commissioner Robert Daly wrote in 1991 that the "blue wall of solidarity with its macho mores and prejudices, its cover-ups and silence, is reinforced every day in every way."

263. The effect of this practice is to permit police officers of the New York City Police

Department to function at levels of significant and substantial risk to the public.

264. That these policies, practices and customs include, *inter alia*: the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in the excessive use of force, in warrantless and otherwise unconstitutional and impermissible arrests and imprisonments, particularly those who are repeatedly accused of such acts; and the police code of silence wherein police officers regularly cover up police abuse of power by telling false and incomplete stories.
265. At all times material to this Complaint, defendant, CITY, had in effect policies, practices and customs of allowing, permitting and or ratifying police officers' warrantless arrests, assault on detainees and malicious prosecutions.
266. That the policy of failure to screen, discipline, supervise, counsel, transfer, control and correct unconstitutional patterns or conditions, is evidenced, *inter alia*, by the following:
- a) The fact that in only a small percentage of cases involving complaints against police officers is some form of discipline recommended.
 - b) The fact that cases where complaints have been lodged against police officers were inadequately investigated.
 - c) The fact that the decision as to whether to discipline a police officer is taken relying primarily on police officers to conduct the investigations of alleged misconduct.
 - d) The fact that, upon information and belief, only a small number of police officers have been has been fired for such misconduct since 1989.
 - e) The fact that of the above-mentioned complaints that were found to be substantiated, most do not result in any kind of meaningful discipline.
267. That the policymakers of the CITY, the Police Department and the New York County

District Attorney's Office knew or should have known that defendant police officers individually named herein, and other police officers in the Department were violating citizens' Constitutional rights and that they were taking actions that were shocking the conscience or otherwise violating the substantive due process rights of the people of New York City.

268. That defendant, CITY, in the vast majority, if not all, of police abuse cases that result in verdicts or substantial settlements for the victims, defendant, CITY, and the New York City Police Department fail to impose any discipline upon the police officers guilty of abuse, either before or after the Court resolution.
269. That defendant, CITY, after the resolution of civil cases that result in verdicts or substantial settlements for victims of police misconduct, almost never even reopens an investigation previously conducted.
270. That in a substantial number of cases, defendant, CITY, promotes the officers guilty of misconduct to a position of greater authority.
271. On information and belief, defendants, GOMEZ, LEON, ACCOMANDO, JACKSON, and SULLIVAN have been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that defendant police officers herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiff, herein.
272. On information and belief, that other police officers involved in Plaintiff's arrest had been the subject of prior civilian and departmental complaints of misconduct that put, or should have put, the defendant, CITY, and the New York City Police Department on notice that

defendant police officers herein were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiff, herein.

273. That defendant, CITY, failed to put into place and otherwise maintain an adequate structure for risk containment and stress management relative to its police officers. *Inter alia*, the structure was deficient at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual police officers; to the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The net effect of this was to permit police officers of the New York City Police Department to function at levels of significant and substantial risk to the public.
274. Upon information and belief, police officers receive no training or woefully inadequate training regarding how to conduct photographic and in-person identification procedures in a manner that will prevent false identifications.
275. Upon information and belief, police officers receive no training or woefully inadequate training regarding documentation of witness statements in a manner that will accurately document and preserve the true circumstances surrounding identification procedures.
276. Upon information and belief, police officers receive no training or woefully inadequate training regarding documentation of witness statements in a manner that will accurately memorialize and preserve exculpatory and impeaching information.
277. Upon information and belief, police officers receive no training or woefully inadequate training regarding their disclosure obligations regarding potentially exculpatory and

impeaching information, and in fact are encouraged and indoctrinated to not document or preserve any such evidence, to suppress such evidence and withhold the fact of its existence from the prosecution, the court, and the defense.

278. Upon information and belief, police officers receive no training or woefully inadequate training regarding maintaining the integrity and veracity of statements provided to them by witnesses or others, and are encouraged and indoctrinated in the use of isolation, false promises, threats, intimidation, and deceit to manipulate and influence witnesses, and to create and fabricate evidence to create the appearance of probable cause.
279. Defendant CITY and its agency, the NYPD and the New York County District Attorney's Office failed to effectively screen, hire, train, supervise and discipline their police officers, including the defendant police officers herein, for racial bias, lack of truthfulness, and for their failure to protect citizens from the unconstitutional conduct of other police officers, thereby permitting and allowing the defendant police officers to be in a position to manipulate witnesses, manufacture and fabricate evidence, and conceal evidence so as to secure convictions in violation of federal and state constitutional rights, and/or to permit these actions to take place with those officers' knowledge or consent.
280. Plaintiff's injuries were a direct and proximate result of the defendants' wrongful policies, practices, customs and/or usages complained of herein and in existence at the time of the incidents complained of herein and of the knowing and repeated failure of the defendant CITY and the NYPD to properly supervise, train and discipline their police officers.
281. Defendant CITY knew or should have known that the acts alleged herein would deprive Plaintiff of his rights, in violation of the Fourth, Fifth, Sixth, Ninth, and Fourteenth Amendments to the United States Constitution and Article 1, §§ 1, 6, 11, and 12 of the

Constitution of the State of New York, including, without limitation, Plaintiff's freedom from deprivation of liberty without due process of law.

282. Defendant CITY is directly liable and responsible for the acts of the defendant officers because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the NYPD, and to require compliance with the constitutions and laws of the State of New York and the United States.
283. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction over this action.

SIXTEENTH CAUSE OF ACTION
Violation of New York State Constitution

284. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "268" above as if fully set forth herein.
285. That by virtue of the aforementioned acts, defendants, GOMEZ, LEON, ACCOMANDO, JACKSON, SULLIVAN, VANCE and BATMANGHELIKJ are liable to plaintiff for violating his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.
286. The acts and conduct of the defendants their agents and employees were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
287. That defendant, CITY, is also liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of *respondeat superior*.

288. That as a result of the foregoing, plaintiff was severely and seriously injured, both bodily and mentally, suffered a loss of enjoyment of life, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses and suffered economic loss and other damages
289. Defendants are sued in their individual and official capacities.
290. The amount of damages sought in this action exceeds the jurisdictional limits of all lower Courts that might otherwise have jurisdiction.

SEVENTEENTH CAUSE OF ACTION
(Pursuant to 42 U.S.C 1988 against all Defendants)

291. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "275" above as if fully set forth herein.
292. That the actions of defendants heretofore described resulting in plaintiff's detention, imprisonment, assault and battery, use of excessive force and malicious prosecution deprived Plaintiff of rights, privileges and immunities as guaranteed under the United States Constitution, Amendments Four and Fourteen, the New York State Constitution and the Civil Rights Acts, 42 U.S.C. §1983.
293. That in the event that Plaintiff is successful in the prosecution of the aforesaid claim(s), Plaintiff shall be a prevailing party within the meaning of 42 U.S.C. §1988 and entitled to the recovery of attorneys' fees from defendants.
294. By reason of the foregoing, defendants became liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, plaintiff, OUSMAN SAVANE, respectfully demands judgment against defendants, THE CITY OF NEW YORK, GOMEZ, LEON, ACCOMANDO,

JACKSON , SULLIVAN, CYRUS VANCE, JR., and ADA NAHAL

BATMANGHELIKJ and requests compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all Court of lesser jurisdiction; an award of attorney's fees pursuant to 42 U.S.C. § 1988, costs and disbursements of this action; and such other and further relief as this Court may deem just, fair, and proper under the circumstances.

Dated: New York, New York
April 6, 2015



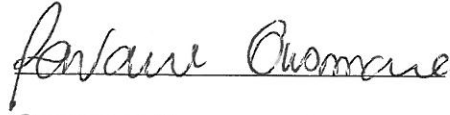
ROBERT & GROSS, P.C.
150 Broadway, Suite 712
New York, New York 10038
(212) 608-3103

-VERIFICATION-

STATE OF NEW YORK)

COUNTY OF NEW YORK) : ss.:

Ousmane Savane, being duly sworn, says that he is the Plaintiff in the above -named proceeding and that the foregoing is true to his own knowledge, except as to matters alleged upon information and belief and as to those matters he believes them to be true.


Ousmane Savane

Sworn to before me this 6
day of April, 2018


Notary Public

ERNESTINE J. NARCISSE
NOTARY PUBLIC-STATE OF NEW YORK
No. 02NA6253756
Qualified in Kings County
My Commission Expires January 03, 2019